

Barnala Steel Industries Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 28 August 2024 · 2024:AHC:168705-DB · Writ-C No. 41338 of 2008 with Writ-C No. 462 of 2009 · **Both writs disposed; consumer relegated to Ombudsman on loading charges**

HEADNOTE

On the petitioner's request and with no objection from the licensee, the High Court disposed of two writs concerning additional load and system loading charges by directing the consumer to the Electricity Ombudsman, without deciding the 23 June 2008 office-memorandum conditions or whether those charges were justified.

FACTUAL SUMMARY

Barnala Steel Industries Ltd. sued Paschimanchal Vidyut Vitran Nigam Ltd. in two connected writs. Writ C No. 41338 of 2008 challenged Conditions 1 and 2 of an office memorandum dated 23 June 2008 and sought release of additional load through a 33 kV feeder at Muzaffarnagar; that load had already been released under interim orders. Writ C No. 462 of 2009 challenged a 2 December 2008 letter only insofar as it demanded system loading charges for the additional load.

HOLDING-UNITS

HOLDING-UNIT · EA2003::42(6)

ombudsman

HOLDING

The Court did not decide the challenge to system loading charges levied on load enhancement, or the related office-memorandum conditions, and disposed of both writs by directing the consumer to approach the Electricity Ombudsman for that grievance. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

On the petitioner's request and with no objection from the licensee, the High Court disposed of two writs concerning additional load and system loading charges by directing the consumer to the Electricity Ombudsman, without deciding the 23 June 2008 office-memorandum conditions or whether those charges were justified. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF CONDITIONS 1 AND 2 OF THE OFFICE MEMORANDUM DATED 23.06.2008

Writ-C No. 41338 of 2008 sought certiorari; the Court did not rule on those conditions. ¶ 1

NOT DECIDED — WHETHER SYSTEM LOADING CHARGES ON LOAD ENHANCEMENT WERE JUSTIFIED

Left to the Electricity Ombudsman. ¶ 1